IT is only on January 20 that many an aspiring America-bound Indian worker or student will find out if it's going to be a Happy New Year or not. That is the date when Donald Trump will formally take oath as president of the United States for a second time and reveal the contours of what he promises will be the most radical immigration policy ever. It could shatter, among other things, the dollar dreams of many Indians. Close to one million Indian legal migrants and their families with H-1B or temporary employment visas could be directly impacted. Another 725,000 Indians, who are presumed to have entered America illegally, could face deportation. Trump has vowed that he will carry out the largest ever deportation of illegal immigrants from the USA on Day 1 of his presidency. It is likely to include Indians. Top on that list are 17,940 Indian illegal migrants who have exhausted all legal recourse. They may face immediate deportation, which could prove to be a major political headache for the Narendra Modi government (see *The New American Nightmare*).

There are also indications that the new Trump administration could make entry to the USA through the H-1B visa route tougher and costlier. Introduced in 1990 by the George H.W. Bush administration, the H-1B visa programme has a current cap of 65,000 foreign professionals annually, along with 20,000 who graduate from American institutions. The visa is valid for three years and can be extended for another three years. Indian techies will be hit the hardest if there is any tightening of rules or a further capping on numbers, since they account for the maximum number of H-1B visa-holders in the USA. In FY2023 (from Oct. 1, 2022, to Sept. 30, 2023, in the US), Indians were granted 206,591, or 78 per cent, of the 265,777 H-1B visas issued. (These included fresh visas, extensions or conversions from another category to H-1B.) More recently, Indian IT firms with affiliates in the USA, including the four majors—Infosys, TCS, HCL and Wipro—got approval for around 25,000 employees to work on H-1B visas, which is 20 per cent of the total 130,000 issued in the second half of FY24. India's IT sector, which exported $205 billion worth of software services in FY24—the US accounting for 54 per cent of that share—could end up getting hurt should Trump tighten screws on H-1B visas.

TRUMP IS APPROACHING THE H-1B VISA ISSUE WITH A VELVET GLOVE, RESERVING THE IRON FIST FOR ILLEGAL IMMIGRANTS

A DIVIDED LOBBY

A full-scale civil war seems to have erupted among Trump's MAGA (Make America Great Again) support base on the H-1B issue even before he has assumed the presidency. Triggering this, among other things, were the concerns tech circles had been voicing on the need for immigration reform. Like this much-discussed December 14 post on microblogging platform X by Aravind Srinivas, co-founder of perplexity.ai, a new-age start-up unicorn. Thirty-one-year-old Srinivas, an

THE H-1B GAUNTLET

The H-1B visa has long been a gateway for many Indians seeking temporary yet secure entry into the USA. Here's a lowdown on its significance, key beneficiaries and evolving architecture since Trump 1.0

WHAT ARE H-1B AND H-4 VISAS?

H-1B VISA

- A temporary employment visa for skilled workers in specialised fields like technology and medicine
- Requires American employer to sponsor the applicant

H-4 VISA

- For dependants (spouses and children) of H-1B visa-holders
- Admitted to America for the duration of the primary visa-holder; can't usually work

THE PROS AND THE CONS FOR AMERICA

THE PROS

- Allows American companies to fill critical skill gaps by hiring highly skilled foreign workers
- Plays a significant role in supporting small-scale businesses in high-demand sectors like IT

THE CONS

- Some firms misuse the programme to hire foreign workers at lower wages, displacing American workers
- Especially linked to increasing layoffs of domestic graduates in tech industry

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